



Notification Waiver Determination

Australian Venue Co – assets of Courthouse Hotel, Newtown NSW

Acquisition	AVC Operations Pty Ltd (AVC), a subsidiary of Australian Venue Co. Holdings Limited, applied for a notification waiver in respect of its proposed acquisition of substantially all the assets of the licensed hotel business trading as the Courthouse Hotel, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	21 May 2026

Parties to the Acquisition	The acquirer, AVC, operates over 200 licensed venues throughout Australia and New Zealand, primarily pubs, as well as some bars, clubs and licensed restaurants. AVC's venues are individually branded and are mostly located in inner-city and metro areas, offering a range of products and services including food, alcoholic and non-alcoholic beverages, function rooms, live entertainment and gaming facilities. The target, Courthouse Hotel, is a licensed hotel with an outdoor courtyard, located at 202 Australia Street, Newtown, NSW. AVC and the Courthouse Hotel both supply retail hospitality services in metropolitan Sydney.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. the parties' combined share in the number of venues supplying retail hospitality services in the local area surrounding the Courthouse Hotel is low b. there are alternative suppliers of retail hospitality services in the local area surrounding the Courthouse Hotel and in the broader Sydney area. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply.

	While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act